

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 3173 of 2019

Md. Murshed Alam

.....Convict-petitioner.

-Versus-

The State

.....Opposite party.

No one appears

.....For the convict-petitioner.

Ms. Shahida Khatoon, D.A.G with
Ms. Sabina Perven, A.A.G with
Ms. Kohenoor Akter, A.A.G.

.....For the opposite party

Heard and Judgment on 23.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 01.08.2019 passed by the learned Sessions Judge, Lakshmipur in Criminal Appeal No. 161 of 2017 affirming the judgment and order of conviction and sentence dated 02.07.2017 passed by the learned Judicial Magistrate, 4th Court, Lakshmipur in G.R. No. 153 of 2016 corresponding to Chandragonj Police Station Case No. 14 dated 16.08.2016 convicting the accused appellant under table 9(Ka) of Section 19(1) of the Madok Drobbo Niontron Ain, 1990 and

sentencing him thereunder to suffer rigorous imprisonment for a period of 08(eight) months and to pay fine of Tk. 1,000 (one thousand) in default to suffer simple imprisonment for 15 (fifteen) days more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

No one appears.

In view of the fact that this petty old criminal Revision arising out of 08(eight) months sentence has been dragging before this Court for more than 4 years, I am inclined to dispose of the same.

At the time of pronouncement of judgment, it appears from the record that this Court on 18.11.2019 at the time of issuance of the Rule granted bail to the accused petitioner for a period of 01(one) year, which was lastly extended on 12.09.2021 for a period of 01(one) year from 12.09.2021 and thereafter, no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 12.09.2022. In that view of the matter, I have no hesitation to hold that the convict petitioner is a fugitive from law and justice.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC where it has been observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

In view of the above, this Rule must fail.

In the result, the Rule is discharged. The convict-petitioner, Md. Murshed Alam is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the Trial Court below shall take necessary steps to secure arrest against the convict petitioner.

Send down the lower Court records at once.